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California enacts an ultra-processed food law but only for public school meals

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Gov. Gavin Newsom has signed a first-in-the-nation law to legally define ultra-processed foods, or UPF, and phase out the most harmful ones from California public school meals.

Assembly Bill 1264, introduced by Assemblymember Jesse Gabriel, D-Encino, received overwhelming bipartisan support from legislators in the California Assembly and Senate.

"With Governor Newsom's signature, California has taken a historic step toward protecting our children from harmful ultra-processed foods and chemical additives," said Gabriel.

"While Washington D.C. is paralyzed by inaction, California is once again leading the nation with a bipartisan, commonsense, science-based approach," he added. "Here in the Golden State, Democrats and Republicans are joining forces to ensure that students are receiving healthy, nutritious meals that are made from real foods, not harmful chemical additives. I applaud Governor Newsom for his continued leadership on food safety, and I am grateful to the dedicated advocates from around the country who worked tirelessly to help us pass this important new law."

Generally, UPFs contain industrially manufactured and chemically modified products. They often require potentially harmful additives to enhance taste, texture, and appearance.

The new California law creates a first-ever legal definition of UPF in the United States. Food will be considered UPF if it's high in saturated fat, added sugar, or sodium and contains a food additive such as artificial flavor, artificial color, emulsifier or a thickening agent.

The law requires the state's Department of Public Health to collaborate with University of California experts to research the links between UPF and disease and health harms.

These experts must also identify UPFs that are "of concern" and will be phased out of public school food. The food vendors that supply California's K-12 schools must comply with the law by 2032.

The measure received bipartisan support in the California Legislature, passing out of the Senate with a vote of 40-0 and out of the Assembly with a vote of 79-1.

The groundbreaking legislation was co-sponsored by Consumer Reports, the Environmental Working Group and Eat Real.

"Harmful ultra-processed foods that put students' health at risk and interfere with learning have no place in our schools," said Brian Ronholm, director of food policy at Consumer Reports. "These foods don't provide kids with the nutrients they need and are deliberately engineered to be addictive, which encourages unhealthy eating habits and overconsumption."

Ronholm continued, "California's new law will protect students by getting harmful ultra-processed foods off the menu and encouraging schools to provide healthier options that help fuel kids' bodies and brains for learning. We commend Assemblymember Gabriel for his steadfast leadership in making California a national leader in school nutrition and food safety."

Revolution Foods, California's largest public school meal vendor, strongly supports the goal of this legislation to

ensure healthier meals for children across the state and is happy to provide input on its implementation.

"We applaud California for taking this critical step to prioritize children's health, and we are proud to continue leading the way in providing thousands of fresh, nutritious meals to students each year," the Revolution Foods statement added.

This is the third major food law to emerge from California in as many years. The California School Food Safety Act, signed into law in 2024, prohibits the use of six harmful food dyes in public schools. It followed a 2023 law banning the manufacture, distribution, or sale of food in the state containing the chemicals brominated vegetable oil, potassium bromate, propyl paraben and Red Dye No. 3.

Newsom issued an executive order in January, directing California agencies to explore new ways to minimize the harms of UPF consumption and reduce the purchase of soda, candy, and other types of UPF, including those that contain artificial dyes. Newsom's signing of the UPF law continues his long-standing leadership on this issue and legacy of prioritizing children's health.

Obesity is chief among the health problems linked to UPF. Rates of obesity in the U.S. and globally have skyrocketed in recent years in tandem with rising UPF consumption.

At the federal level, the recent Make America Healthy Again (MAHA) report said USDA and HHS, including FDA, will continue efforts to develop a U.S. government-wide definition for ultra-processed food" to support potential future research and policy activity."

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